

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: XiaoLing Wang	Team: Team # 1	CCRB Case #: 201100308	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Saturday, 01/01/2011 2:15 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 7/1/2012	Precinct: 62
Date/Time CV Reported Mon, 01/03/2011 7:35 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 01/06/2011 3:31 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Eduard Nogol	17002	931851	062 PCT
2. SGT David Miller	01433	916227	062 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Daniel Sherlock	30545	946554	062 PCT
2. POM Vitaliy Matviiv	27955	945968	062 PCT
3. POM John Wygand	16282	939719	062 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Eduard Nogol	Force: PO Eduard Nogol used physical force against § 87(2)(b)	A . Unsubstantiated
B . SGT David Miller	Force: Sgt. David Miller used physical force against § 87(2)(b)	B . Unsubstantiated

Case Summary

Sgt. Metin Bakioglu of the 62nd Precinct called IAB (log no. 11-00340) on January 3, 2011 and filed this complaint on behalf of § 87(2)(b). The CCRB received this complaint on January 6, 2011. At approximately 2:15 a.m. on January 1, 2011, § 87(2)(b) girlfriend, § 87(2)(b) § 87(2)(b) called 911 and reported that § 87(2)(b) who was celebrating New Year's Day in her apartment at § 87(2)(b) § 87(2)(b) in Brooklyn, hit her. PO Daniel Sherlock, PO Vitaliy Matviiv, PO Eduard Nogol, PO John Wygand, PO Michael Birzin and Sgt. David Miller of the 62nd Precinct responded to the location. The following allegations resulted:

Allegation A – Force: PO Eduard Nogol used physical force against § 87(2)(b)

Allegation B – Force: Sgt. David Miller used physical force against § 87(2)(b)

§ 87(2)(g)

it is recommended that **Allegations A and B be Unsubstantiated.**

§ 87(2)(g)

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b)-old white male, § 87(2)(b), with brown hair and brown eyes. § 87(2)(b)

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on February 1, 2011 (encl. B4-7).

At approximately 1:00 a.m. on January 1, 2011, § 87(2)(b) and his girlfriend, § 87(2)(b) were celebrating New Year's Day in § 87(2)(b) apartment at § 87(2)(b) § 87(2)(b) in Brooklyn. § 87(2)(b) and § 87(2)(b) each consumed five drinks. § 87(2)(b) (b) stated to the CCRB that he was not intoxicated. They got into a fight when § 87(2)(b) wanted to go out, but § 87(2)(b) did not want her to leave. § 87(2)(b) took § 87(2)(b) keys from her, pushed her to a bed, and told her that she was not leaving. § 87(2)(b) hit one of § 87(2)(b)'s hands, § 87(2)(b) did not specify which, and he "lightly" hit her back in an unspecified area of her face. § 87(2)(b) called 911. § 87(2)(b) § 87(2)(b)-old daughter, § 87(2)(b) was the only other civilian in the apartment.

At approximately 2:30 a.m., two uniformed officers, identified through the investigation as PO Daniel Sherlock and PO Vitaliy Matviiv of the 62nd Precinct, knocked on the apartment door. It was unclear whether § 87(2)(b) or § 87(2)(b) answered the door. § 87(2)(b) described PO Matviiv as a white (Russian) male who stood 5'10" tall, and weighed 170 pounds, and incorrectly described PO Sherlock as an Asian male who stood 5'10" tall and weighed 170 pounds. § 87(2)(b) had gone to her next door neighbor's apartment when the officers arrived.

PO Sherlock and PO Matviiv, who were standing outside the apartment, asked § 87(2)(b) what

happened and if they could come in. § 87(2)(b) told the officers that they could not come in and that he and § 87(2)(b) had been drinking and § 87(2)(b) got upset and kicked him when he did not want her to go out. § 87(2)(b) talked with PO Sherlock and PO Matviiv for five minutes. The officers asked § 87(2)(b) if she wanted § 87(2)(b) to leave and she said yes. After § 87(2)(b) told PO Sherlock and PO Matviiv that she wanted § 87(2)(b) to leave, two or three more uniformed officers showed up and all the officers entered the apartment. The investigation identified the additional officers as PO Eduard Nogol and PO John Wygand of the 62nd Precinct. § 87(2)(b) described PO Nogol as a white and Hispanic male, heavy-set, 200 to 220 pounds, with brown or brownish green eyes and brown hair. § 87(2)(b) could not provide a physical description for PO Wygand.

§ 87(2)(b) picked up his cell phone, called 911, and was put through to a district attorney. When § 87(2)(b) started saying the names and the shield numbers of the officers on the phone, four or five officers grabbed his arms, but they did not take his cell phone. § 87(2)(b) asked the officers why he was being arrested because § 87(2)(b) only wanted him to leave. § 87(2)(b) did not resist when the officers grabbed him, but he did move back. Four to five officers pushed § 87(2)(b) and placed him against a wall and the right side of his face was against the wall. Two officers, whom § 87(2)(b) did not specify, stood by his left side while two other officers stood on his right side and handcuffed him. § 87(2)(b) hands were by his sides the whole time and he did not resist or hit anyone, but he was excited by the situation and was moving. After § 87(2)(b) was handcuffed, PO Nogol approached him on his left side where there was another unknown officer standing next to him. PO Nogol punched § 87(2)(b) on his left forehead temple with his right closed fist. § 87(2)(b) sustained a bruise on his left temple. § 87(2)(b) was in the apartment and saw the punch, but did not say anything.

After § 87(2)(b) was punched, he became upset and asked, “Are you serious?” § 87(2)(b) and the officers then moved to the dining table that was six feet away from the wall, but § 87(2)(b) did not recall how they moved. After § 87(2)(b) was handcuffed and punched, he was moving, but he was not running anywhere or trying to escape from the officers because it was a small apartment. § 87(2)(b) and the officers bumped into the dining table and knocked over the wine glasses on the table. As § 87(2)(b) was barefoot, he stepped on the broken glasses and sustained cuts on his feet, hands, and elbows. § 87(2)(b) stated that five to six officers, including PO Sherlock, PO Matviiv, and PO Nogol, placed him facedown on the ground, but he did not remember how he was brought to the ground and could not describe the remaining officers who placed him on the ground. He did not know how he sustained cuts on his elbows.

After he was on the ground, an officer, identified through the investigation as Sgt. David Miller of the 62nd Precinct, whom § 87(2)(b) could not describe because he only heard his voice and did not see his face, entered the apartment and asked, “What are you doing? You are resisting my officers.” Sgt. Miller approached § 87(2)(b) on his right side and kicked him six to seven times in his chest and stomach. § 87(2)(b) did not recall whether Sgt. Miller remained in the room after he kicked him. Sgt. Miller sounded like a supervisor because he asked § 87(2)(b) why he resisted his officers. § 87(2)(b) did not sustain a bruise on his chest or stomach. § 87(2)(b) was on the ground for a couple of minutes before he was brought downstairs and transported to the 62nd Precinct stationhouse. While at the stationhouse, § 87(2)(b) asked for medical attention and an EMT showed up, but when he was told that going to the hospital would prolong his processing, he decided not to go to the hospital. § 87(2)(b) did receive medical attention for the cuts on his feet.

§ 87(2)(b)

Witness: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b)-old Hispanic female, § 87(2)(b), with brown hair and brown eyes. She did not provide her employment information.

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on February 24, 2011 (encl. B8-13). § 87(2)(b) is fluent in English, but she feels more comfortable speaking in Spanish. The majority of § 87(2)(b) interview was conducted in Spanish and Inv. Rosemary Espinal interpreted for her. § 87(2)(g)

At approximately 11:30 p.m. on December 31, 2010, § 87(2)(b) had a verbal dispute with § 87(2)(b) in her apartment over her attire. Before the dispute, § 87(2)(b) was in his apartment upstairs in the same building. § 87(2)(b) and § 87(2)(b) each had two glasses of wine, but § 87(2)(b) did not know whether § 87(2)(b) had any drinks before going to her apartment. § 87(2)(b) and § 87(2)(b) were dancing and § 87(2)(b) got upset because § 87(2)(b) was not following his lead and slapped her once on the right cheek and § 87(2)(b) slapped him back once on his left cheek. § 87(2)(b) daughter, § 87(2)(b) was standing by the kitchen and told § 87(2)(b) that she wanted to call her father in Mexico and § 87(2)(b) told her to go ahead and to say hello for her. § 87(2)(b) got upset that § 87(2)(b) told § 87(2)(b) to say hello to § 87(2)(b) father for her. § 87(2)(b) and § 87(2)(b) went into their respective bedrooms. § 87(2)(b) then went to § 87(2)(b) bedroom and talked with her.

§ 87(2)(b) changed her outfit in her bedroom and wanted to go out to buy some cigarettes. She went to § 87(2)(b) bedroom, asked § 87(2)(b) to leave, and told him that she was going out, but § 87(2)(b) pushed her and § 87(2)(b) fell backward onto § 87(2)(b) bed. When § 87(2)(b) got up from the bed, she tried to kick § 87(2)(b) but he grabbed her leg before she could make contact. § 87(2)(b) punched the right side of § 87(2)(b) face four to five times with a closed fist, but § 87(2)(b) did not recall which hand. § 87(2)(b) called 911 and reported that her boyfriend hit her. § 87(2)(b) took § 87(2)(b) cell phone, threw it and broke it. § 87(2)(b) told § 87(2)(b) to call 911.

When four uniformed officers, identified through the investigation as PO Daniel Sherlock, PO Vitaliy Matviiv, PO Eduard Nogol, and PO John Wygand of the 62nd Precinct, arrived, § 87(2)(b) opened the apartment door. § 87(2)(b) described PO Sherlock as a white male, 5'8" to 5'9" tall, big, who appeared to be in his late 40s. She could not provide specific descriptions for PO Matviiv, PO Nogol, and PO Wygand.

One officer, identified through the investigation as PO Sherlock, asked § 87(2)(b) if somebody called 911 and § 87(2)(b) said yes. § 87(2)(b) who was crying, told PO Sherlock that § 87(2)(b) and she were fighting and he hit her. § 87(2)(b) heard § 87(2)(b) tell PO Sherlock that he hit her. PO Sherlock asked § 87(2)(b) if he lived there and § 87(2)(b) said yes, but § 87(2)(b) said no. § 87(2)(b) admitted to PO Sherlock that he hit § 87(2)(b) and that they had been drinking. About two or three more male uniformed officers, identified through the investigation as Sgt. David Miller and PO Michael Birzin, arrived, but § 87(2)(b) did not remember how long these officers arrived after the first four. She could not provide specific descriptions for Sgt. Miller and PO Birzin.

PO Sherlock told § 87(2)(b) that he was under arrest, but § 87(2)(b) told him to wait because he had to make a couple of phone calls and asked PO Sherlock why he was under arrest. § 87(2)(b) was yelling, but he did not curse at the officers. PO Sherlock told PO Matviiv, PO Nogol, and PO Wygand to handcuff § 87(2)(b) but § 87(2)(b) pulled away from the officers and refused to be grabbed. § 87(2)(b) tried to run to § 87(2)(b) bedroom, but PO Matviiv, PO Nogol, and PO Wygand grabbed him before he could run away. PO Matviiv, PO Nogol, and PO Nogol held § 87(2)(b) down and § 87(2)(b) was bent over, which § 87(2)(b) did not specify. The officers kicked § 87(2)(b) three or four times in the abdomen, but § 87(2)(b) was not sure if PO Sherlock also kicked § 87(2)(b).

§ 87(2)(b) got upset and asked why he was under arrest and why he could not make a phone call. After § 87(2)(b) was kicked, § 87(2)(b) told him in English, “Now, how do you feel? You feel how I felt. You were punching me and you are a man. Now, the same thing is happening to you. How do you feel?” When § 87(2)(b) said this, § 87(2)(b) was still not in handcuffs and PO Sherlock told her to leave the apartment. § 87(2)(b) was confused why she had to leave her own apartment, but she complied and went to her next door neighbor’s apartment to check on § 87(2)(b).

§ 87(2)(b) was very upset and yelled to § 87(2)(b) for help and said that the officers were hurting him. § 87(2)(b) was in the apartment for five minutes before she left. Two minutes later, § 87(2)(b) returned to her apartment because § 87(2)(b) was still screaming. When § 87(2)(b) returned to her apartment, § 87(2)(b) was in handcuffs and on the ground and his demeanor appeared calm. § 87(2)(b) told § 87(2)(b) that the officers hurt him, but did not specify how. § 87(2)(b) did not see where § 87(2)(b) cut himself, but there was blood on his body and on the ground. § 87(2)(b) did not see a bruise or any appearance of assault on § 87(2)(b) and the officers did not look injured.

Domestic Incident Report

§ 87(2)(b) provided a statement to PO Sherlock regarding this incident (encl. C8-10).

“My [daughter] was about to call her [father] in Mexico. Then I told my daughter that I will want to speak with him to wish [him] happy New Year. Then § 87(2)(b) got so [crazy] and I told him I will call the police. Then [he] grabbed my phone [and] [broke it]. And I tried to use my [daughter’s] phone. Then [he] [grabbed it] [too] and [broke it] as well as my house phone. Then I called the police with his cell phone. My [daughter] [went] to the [neighbor’s] and called the police [again].”

NYPD Statements:

Witness Officer: PO DANIEL SHERLOCK

- PO Daniel Sherlock is a § 87(2)(b)-old white male, § 87(2)(b), with brown hair and blue eyes.
- PO Sherlock patrolled sectors C and D from 11:15 p.m. on December 31, 2010 to 7:50 a.m. on January 1, 2011 with PO Vitaliy Matviiv. PO Sherlock was in uniform and in marked patrol car number 4870.

Memo Book

PO Sherlock had the following entries in his memo book regarding this incident (encl. C1-2).

At 2:15 a.m.: Dispute at § 87(2)(b). At 3:00 a.m.: One person under arrest at

location. Sergeant was notified. At 3:20 a.m.: Arrived at 62nd Precinct stationhouse to process arrest.

On Line Booking Sheet (OLBS), Complaint Report (UF-61), Domestic Incident Report

§ 87(2)(a) 160.50

§ 87(2)(a) 160.50

§ 87(2)(a) 160.50

§ 87(2)(a) 160.50

§ 87(2)(a) 160.50

§ 87(2)(a) 160.50

§ 87(2)(a) 160.50

Physical force was used, but the type was not specified. PO Sherlock did not use force during § 87(2)(b) arrest and no officer was injured (encl. C3-10).

CCRB Testimony

PO Sherlock was interviewed at the CCRB on March 23, 2011 (encl. C11-13).

At approximately 2:15 a.m. on January 1, 2011, PO Sherlock and PO Matviiv responded to a 911 call with regard to an unspecified dispute at § 87(2)(b) in Brooklyn. When they arrived at the § 87(2)(b) floor hallway, § 87(2)(b) came out of her next door neighbor's apartment and told the officers that her boyfriend was in the apartment and that there was a dispute, the nature of which she did not specify. § 87(2)(b) was alone and her neighbor did not come out to the hallway.

§ 87(2)(b) used her key to open the apartment door, and entered. PO Matviiv followed § 87(2)(b) into the apartment and was standing two feet away from the door while PO Sherlock was standing behind PO Matviiv by the door. § 87(2)(b) who was alone in the apartment, was standing two to three feet to the right of the apartment door with a cell phone in his hand. He wore a long-sleeve T-shirt, a pair of sweatpants, and was barefoot. § 87(2)(b) stood ten feet away from § 87(2)(b) behind a dining table next to the apartment door. § 87(2)(b) yelled at the officers to leave and said that they did not have a right to be there and that they were not let in. There were no other civilians in the apartment.

PO Matviiv told § 87(2)(b) that there was a 911 call. § 87(2)(b) told the officers that they did not have a right to be in his apartment and that he was calling IAB. He was yelling toward the hallway of the floor, "Look at these police officers trying to get into my apartment without a warrant." The neighbor's door was opened where § 87(2)(b) came out of, but no one was in the hallway.

PO Sherlock asked § 87(2)(b) if he lived there and § 87(2)(b) said yes, but § 87(2)(b) signaled with her hand across her throat that § 87(2)(b) did not live there. § 87(2)(b) and § 87(2)(b) were ten feet away from each other and remained where they were before. PO Sherlock asked what was § 87(2)(b) relationship to § 87(2)(b) and § 87(2)(b) said that § 87(2)(b) was his spouse, but § 87(2)(b) again signaled with her hand across her throat that it was not true. § 87(2)(b) appeared intoxicated because his lips were purple from the wine and there was a bottle of

wine and five to six wine glasses on the dining table. § 87(2)(b) was yelling and his demeanor suggested that he was intoxicated. PO Sherlock asked § 87(2)(b) if she wanted § 87(2)(b) to leave and § 87(2)(b) nodded, but § 87(2)(b) did not want to leave. § 87(2)(b) was talking on the phone and yelling at the officers simultaneously. PO Sherlock did not know who § 87(2)(b) was calling.

PO Sherlock used his cell phone and called another unit, GLA auto, for backup because § 87(2)(b) was 6'1" tall, 180 pounds, physically fit, and could put up a fight. While PO Sherlock waited for the additional officers, § 87(2)(b) was still yelling. PO Sherlock asked § 87(2)(b) what happened, and § 87(2)(b) told him that it was just an argument and that the officers were not needed there. PO Matviiv and § 87(2)(b) remained in the apartment and stood in the same positions as when they first entered.

Seven to eight minutes later, PO Eduard Nogol and PO John Wygand of the 62nd Precinct arrived at the apartment. PO Sherlock told PO Nogol and PO Wygand what happened and PO Nogol told PO Sherlock to ask § 87(2)(b) again if she wanted § 87(2)(b) to leave. PO Sherlock asked § 87(2)(b) again if she wanted § 87(2)(b) to leave and she nodded.

PO Sherlock and PO Matviiv both approached § 87(2)(b). PO Matviiv grabbed § 87(2)(b) left arm and PO Sherlock grabbed his right arm. § 87(2)(b) did not say anything, but he tensed up his arms and refused to put his arms behind his back. Besides tensing up his arms, § 87(2)(b) did not do anything else. § 87(2)(b) was still standing in the same position as before. PO Nogol and PO Wygand were standing behind PO Sherlock and PO Matviiv when they grabbed § 87(2)(b). PO Nogol and PO Wygand were standing six feet away from § 87(2)(b) and they were standing in front of § 87(2)(b). When PO Nogol and PO Wygand saw that § 87(2)(b) was struggling, they also grabbed § 87(2)(b) arms.

§ 87(2)(b) flailed his arms across the apartment, broke things on the wall and knocked over the wine glasses on the dining table. § 87(2)(b) managed to move ten to fifteen feet away from the officers toward the bathroom. PO Sherlock, PO Matviiv, PO Nogol, and PO Wygand pulled § 87(2)(b) back and tried to keep him away from any walls. § 87(2)(b) did not make physical contact with any walls. The four officers placed § 87(2)(b) on the dining table with his chest on the table. § 87(2)(b) was still not handcuffed at this point. PO Sherlock, PO Nogol, and PO Wygand held § 87(2)(b) down while PO Matviiv moved away to use the radio and called for backup. PO Wygand asked if they should use the OC spray, but PO Nogol said that the officers were too close to § 87(2)(b).

PO Sherlock, PO Nogol, and PO Wygand tripped § 87(2)(b) legs out from under him and placed him on the ground. When § 87(2)(b) was on the ground, PO Sherlock was standing on his right side and was holding on to his right arm while PO Nogol and PO Wygand were standing by his knees to hold him down. § 87(2)(b) was compliant after he was on the ground. PO Nogol and PO Wygand were still holding § 87(2)(b) down when PO Sherlock and PO Matviiv handcuffed him. § 87(2)(b) was still standing ten feet away from § 87(2)(b) and the officers' backs were to her. PO Sherlock stated that he did not punch § 87(2)(b) in the face or kick him in the stomach or see other officers do so.

Sgt. David Miller, PO Marlon Key, and PO Giuseppe Oliveri arrived five minutes after PO Matviiv called for backup. Sgt. Miller talked to § 87(2)(b) in her bedroom about what happened for four to five minutes. Sgt. Miller also asked which officer was going to process § 87(2)(b) arrest. PO

Sherlock said that he was going to process the arrest. PO Key and PO Oliveri were standing by the apartment door and did not do anything. After Sgt. Miller arrived, PO Sherlock noticed that § 87(2)(b) had a bruise on the bridge of her nose that he did not notice before.

§ 87(2)(b) remained in the apartment for the entire 25 minutes of the incident and no other civilian entered the apartment during that time. § 87(2)(b) was barefoot and was bleeding on his feet because he had stepped on some of the broken glasses during the struggle. § 87(2)(b) was taken to the 62nd Precinct stationhouse.

Witness Officer: PO VITALIY MATVIIV

- PO Vitaliy Matviiv is a § 87(2)(b)-old white male, § 87(2)(b), with blond hair and blue eyes.
- PO Matviiv patrolled sectors C and D from 11:15 p.m. on December 31, 2010 to 7:50 a.m. on January 1, 2011 with PO Daniel Sherlock. PO Matviiv was in uniform and in marked patrol car number 4870.

Memo Book

PO Matviiv had the following entries in his memo book regarding this incident (encl. C14-16).

At 2:04 a.m.: Dispute at § 87(2)(b). At 3:00 a.m.: Crime arrest by PO Sherlock. At 3:02 a.m.: Transporting one perpetrator to the 62nd Precinct stationhouse. At 3:10 a.m.: One male out of the patrol car.

CCRB Testimony

PO Matviiv was interviewed at the CCRB on March 31, 2011 (encl. C17-18). § 87(2)(g)

§ 87(2)(b) told PO Sherlock and PO Matviiv that § 87(2)(b) was drunk, refused to leave her apartment, and broke three phones. PO Matviiv noticed that § 87(2)(b) had a scratch on her nose. There was no language barrier between the officers and § 87(2)(b).

§ 87(2)(b) apartment door was open and PO Sherlock and PO Matviiv entered the apartment. § 87(2)(b) entered the apartment after the officers. PO Sherlock and PO Matviiv were standing by the door facing § 87(2)(b) who was standing six feet away from the officers. § 87(2)(b) was standing to the left of PO Matviiv. The officers asked § 87(2)(b) what he was doing there and he told them that he was invited over and he was not leaving.

§ 87(2)(b) told the officers that he was not leaving his own apartment, and the officers told him that he had to come with them to the precinct stationhouse because he was under arrest. § 87(2)(b) called 911 three minutes after the officers entered. PO Matviiv told § 87(2)(b) to hang up the phone because he was under arrest, but he did not comply. PO Nogol and PO Wygand arrived three minutes after PO Sherlock called for backup. PO Sherlock told PO Nogol and PO Wygand that § 87(2)(b) was under arrest because he was trespassing, broke cell phones, and § 87(2)(b) was in fear. PO Nogol and PO Wygand tried to obtain § 87(2)(b) right arm and put it behind his back.

The officers told § 87(2)(b) multiple times to stop resisting, but § 87(2)(b) did not comply and kept on yelling that he was being illegally arrested in his own apartment and was swaying left to right. While the officers tried to obtain § 87(2)(b) arms, § 87(2)(b) and the officers moved

toward the entrance of the living room. § 87(2)(b) fell to the ground, with his knees touched the ground first, but PO Matviiv did not know how he got on the ground. After PO Matviiv called for backup, he grabbed § 87(2)(b) left arm again. PO Matviiv did not recall § 87(2)(b) making contact with any walls during the struggle. PO Matviiv did not recall whether § 87(2)(b) was in the apartment when the officers handcuffed § 87(2)(b). PO Matviiv stated that he did not punch or kick § 87(2)(b) and did not see other officers do so.

Subject Officer: PO EDUARD NOGOL

- PO Eduard Nogol is a § 87(2)(b)-old white male, § 87(2)(b), with black hair and brown eyes.
- PO Nogol worked house of worship auto with PO John Wygand from 11:15 p.m. on December 31, 2010 to 7:50 a.m. on January 1, 2011. PO Nogol was in uniform and in marked patrol car number 1786.

Memo Book

PO Nogol had the following entries in his memo book regarding this incident (encl. C19-20).

At 2:32 a.m.: Backup needed at § 87(2)(b). At 3:08 a.m.: Resumed patrol and left the scene which was handled by sector C.

CCRB Testimony

PO Nogol was interviewed at the CCRB on April 18, 2011 (encl. C21-22). § 87(2)(g)

PO Sherlock and PO Matviiv responded to a domestic dispute and needed assistance. The job was dispatched as members of service (M.O.S.) involved. When PO Nogol and PO Wygand arrived, § 87(2)(b) was standing behind a table or a couch and was standing five feet away from § 87(2)(b). PO Sherlock and PO Matviiv told § 87(2)(b) to get off the phone, but he refused. § 87(2)(b) told the officers that she and § 87(2)(b) who lived upstairs, had a prior relationship and that she did not invite § 87(2)(b) over and when she asked § 87(2)(b) to leave, he refused.

PO Nogol, who was on § 87(2)(b) left side, tried to grab his left arm while the other three officers, who were standing on his right side, tried to grab his right arm. § 87(2)(b) pulled away from the officers and moved eight to ten feet away to the kitchen and the officers were also dragged into the kitchen with him. § 87(2)(b) then moved to the hallway a few feet away where the officers finally obtained his right arm. § 87(2)(b) chest was placed against a wall in the hallway and PO Sherlock, PO Matviiv, and PO Wygand put § 87(2)(b) right arm behind his back and placed the handcuff on his right wrist. The right side of § 87(2)(b) face was also placed against the wall and he was turned toward PO Nogol. While trying to obtain § 87(2)(b) left arm and putting it behind his back, PO Nogol placed one of his hands on § 87(2)(b) face for a minute to prevent him from biting or spitting at him, but he did not punch § 87(2)(b) in the face or see other officers do so.

PO Nogol was unable to put § 87(2)(b) left arm behind his back because § 87(2)(b) was very strong; he is 6'2" tall, 230 pounds, with solid muscles. PO Sherlock, PO Wygand, and PO Matviiv tripped § 87(2)(b) legs out from underneath him and PO Nogol held on to both of his legs to keep him from getting up, which he tried to do. PO Nogol stated that he was on § 87(2)(b) left side the whole time during the struggle, which lasted eight minutes, and he did not see what happened on § 87(2)(b) right side. No officers were injured. During the struggle, § 87(2)(b)

kept repeating his rank in the military. Although § 87(2)(b) did not curse at the officers, he was defiant and kept asking why he was under arrest. PO Nogol did not kick § 87(2)(b) in the chest and stomach and did not see other officers do so.

Witness Officer: PO JOHN WYGAND

- PO John Wygand is a § 87(2)(b)-old white male, § 87(2)(b), with blond hair and blue eyes.
- PO Wygand worked house of worship auto with PO Eduard Nogol from 11:15 p.m. on December 31, 2010 to 7:50 a.m. on January 1, 2011. He was in uniform and in marked patrol car 1786.

Memo Book

PO Wygand had the following entries in his memo book regarding this incident (encl. C23-25).

At 2:32 a.m.: Sector C requested additional unit at § 87(2)(b). At 3:06 a.m.: Returned to stationhouse regarding assisting the officers. Sector C had the arrest of one white male.

CCRB Testimony

PO Wygand was interviewed at the CCRB on April 19, 2011 (encl. C26-28). § 87(2)(g)

PO Wygand was driving when PO Sherlock called him on his cell phone and stated that a dispute was about to get out of control. PO Wygand and PO Nogol arrived two to three minutes later and met PO Sherlock and PO Matviiv in the hallway of the fourth floor outside § 87(2)(b) apartment.

PO Wygand and PO Nogol asked § 87(2)(b) if she lived there and she said yes. PO Nogol asked § 87(2)(b) if § 87(2)(b) lived there and she said no. PO Nogol asked § 87(2)(b) if she wanted § 87(2)(b) to leave and she said yes. § 87(2)(b) also motioned with her face that she had been assaulted by a closed fist. At that point, based on what § 87(2)(b) told the officers, § 87(2)(b) was under arrest for criminal trespassing.

PO Sherlock and PO Matviiv asked § 87(2)(b) to hang up his cell phone because they needed to speak with him, and asked if he could come to the hallway, but § 87(2)(b) refused. § 87(2)(b) continued to talk on the cell phone and said that he was a sergeant who was unemployed and the officers did not belong in his apartment.

Four officers approached § 87(2)(b) simultaneously. PO Wygand approached § 87(2)(b) on his right side, grabbed his right arm, and put it behind his back. He did not recall where the other officers were standing. One officer, whom PO Wygand did not recall, took out his handcuffs, but dropped it. § 87(2)(b) was flailing his left arm and the other three officers were trying to grab his left arm.

§ 87(2)(b) moved across the living room to the small hallway leading to the bathroom that was five to six feet away. The officers tried to handcuff § 87(2)(b) in the hallway and he was placed against a wall for a minute. PO Wygand was on § 87(2)(b) right side and did not recall if § 87(2)(b) chest was placed against the wall. PO Wygand did not punch § 87(2)(b) in the face and did not see other officers do so.

§ 87(2)(b) then moved toward the dining table in the living room that was seven to eight feet away. As there were glasses, bottles of wines, knives, and forks on the dining table and § 87(2)(b) was reaching for the knife on the table with his left hand, PO Wygand stated that the officers feared for their safety. When § 87(2)(b) headed toward the table, PO Wygand lost the hold on his right arm. PO Wygand took out his handcuffs and managed to put one handcuff on § 87(2)(b) left wrist, and was holding on to the handcuffs.

The officers tried to move § 87(2)(b) away from the table, but he would not budge for at least two minutes. PO Wygand suggested to other officers that because of all the silverware in the apartment, they should move § 87(2)(b) to the hallway for their safety. § 87(2)(b) did not have any silverware in his hand when the officers moved him away from the dining table. § 87(2)(b) tried to run to the kitchen, but PO Wygand took out his legs and brought him facedown to the ground with the help of other three officers. One officer, whom PO Wygand did not recall, had placed a handcuff on § 87(2)(b) right hand. As PO Wygand already had his handcuff on § 87(2)(b) left hand, the officers combined both handcuffs and § 87(2)(b) was finally handcuffed. It took four officers and two sets of handcuffs to handcuff § 87(2)(b). During the struggle, the officers told § 87(2)(b) to stop resisting and to put his hands behind his back, but he told the officers to get off of him.

PO Wygand grabbed § 87(2)(b) arms while PO Nogol held on to his legs to prevent him from getting up. § 87(2)(b) continued to struggle while on the ground, but he slowly calmed down. § 87(2)(b) did not say anything. PO Nogol held on to § 87(2)(b) legs until he calmed down. PO Wygand did not kick § 87(2)(b) or see other officers kick him.

Subject Officer: SGT. DAVID MILLER

- Sgt. David Miller is a § 87(2)(b) -old white male, § 87(2)(b), with brown hair and brown eyes.
- Sgt. Miller was the patrol supervisor and PO Michael Birzin was his operator. He worked from 11:05 p.m. on December 31, 2010 to 8:02 a.m. on January 1, 2011. He was in uniform and in marked patrol car number 2336.

Memo book

Sgt. Miller had the following entries in his memo book regarding this incident (encl. C29).

At 2:15 a.m.: § 87(2)(b) § 87(2)(b) was arrested and domestic violence was involved. He was charged with § 87(2)(a) 160.50 § 87(2)(b). He punched his girlfriend in the face area with visible swelling and had blood on his foot caused by broken glass. Called IAB (212-741-8401) regarding this incident.

CCRB Testimony

Sgt. Miller was interviewed at the CCRB on July 18, 2011 (encl. C30-31). § 87(2)(g)

Sgt. Miller received a call for backup from an officer he did not recall and arrived with his operator, PO Birzin, three minutes later. When Sgt. Miller arrived at the apartment, § 87(2)(b) was lying on his belly with the handcuffs on and appeared calm and cooperative. PO Wygand was standing over § 87(2)(b) and leaning down to make sure that he did not move. Sgt. Miller was

standing ten to fifteen feet away from § 87(2)(b) and § 87(2)(b) was standing ten to fifteen feet away from § 87(2)(b) by the bedroom door and appeared nervous. Sgt. Miller asked the officers what happened and PO Nogol told him what happened. PO Nogol told Sgt. Miller that the officers placed § 87(2)(b) under arrest, but did not say how they apprehended him. Sgt. Miller spoke with PO Nogol for two minutes.

§ 87(2)(b) told Sgt. Miller that he did not do anything and Sgt. Miller told him that he did because that was why he was under arrest. Sgt. Miller told § 87(2)(b) who was still on his belly, to roll over so he could put his shoes on, and § 87(2)(b) complied. Sgt. Miller, who was still ten to fifteen feet away from § 87(2)(b) did not make physical contact with him. When § 87(2)(b) rolled over, he complained of a hurt arm, but did not complain that any officers did anything to him. The other officers were standing next to or behind Sgt. Miller when he told § 87(2)(b) to roll over. Sgt. Miller stated that he did not kick § 87(2)(b) and did not see other officers kick or punch him.

Sgt. Miller talked with § 87(2)(b) about what happened in her bedroom. § 87(2)(b) showed Sgt. Miller where the physical dispute occurred in the bedroom. § 87(2)(b) told Sgt. Miller that after § 87(2)(b) got offended over a phone call to Mexico, he got undressed and tried to have sex with her. § 87(2)(b) pushed § 87(2)(b) into § 87(2)(b) bedroom. When § 87(2)(b) managed to get out of § 87(2)(b) bedroom, § 87(2)(b) chased her into her bedroom. § 87(2)(b) grabbed her cell phone in her bedroom and told § 87(2)(b) to go to the apartment next door. Sgt. Miller spoke with § 87(2)(b) for five minutes. Sgt. Miller was in the apartment for fifteen minutes.

Officer Not Interviewed

PO Michael Birzin was not interviewed § 87(2)(g)

Medical Records

Pre-arraignment Screening Form

§ 87(2)(b) reported to FDNY that he was not injured and no visual assessment was recorded (encl. D1).

NYPD Documents

SPRINT § 87(2)(b)

At 2:10 a.m. on January 1, 2011, a female caller, with the call back number, § 87(2)(b), reported that in an unknown apartment at § 87(2)(b) in Brooklyn, her friend's mother and her boyfriend were having a dispute and the male was intoxicated. Her friend's name is § 87(2)(b) and the male broke the phone. There were unknown weapons and unknown injuries. At 2:43 a.m.: Sector C arrived on scene. At 2:46 a.m.: Sector C advised other responding officers to slow down to location, Apt. § 87(2)(b) floor. The perpetrator was in custody. At 2:49 a.m.: Sector E arrived on scene. At 2:55 a.m.: Sector G resumed patrol duty. At 3:00 a.m.: Sector C verified the arrest. At 3:04 a.m.: Sector C transported the perpetrator to the 62nd Precinct stationhouse. At 3:29 a.m.: Patrol supervisor resumed patrol duty. At 7:30 a.m.: Sector C completed the job as family dispute arrest (encl. E1).

SPRINT § 87(2)(b)

At 2:12 a.m.: a female caller, § 87(2)(b) with the call back number, § 87(2)(b), who lives at § 87(2)(b)

§ 87(2)(b), stated that her neighbor came over and asked her to call the police. There were unknown weapons and unknown injuries (encl. E2).

SPRINT § 87(2)(b)

At 2:45 a.m.: a male caller, identified by the investigation as § 87(2)(b) with the call back number, § 87(2)(b) who lives at § 87(2)(b) stated that two officers, with the shield numbers, “30545” and “27955,” invaded his home without a search warrant. At 2:46 a.m.: The male caller was connected to PO Gideon at IAB. PO Gideon requested the patrol supervisor to respond to location. At 3:16 a.m.: The patrol supervisor was advised to call IAB. At 6:14 a.m.: Sector C made a family dispute arrest (encl. E3).

Communication Records

According to § 87(2)(b) 911 call, he provided PO Sherlock and PO Matviiv’s shield numbers to the 911 dispatcher in the beginning of his call and was later transferred to IAB. In § 87(2)(b) 911 call, an officer can be heard asking § 87(2)(b) if she wanted § 87(2)(b) to leave and she replied yes. When an officer tried to tell § 87(2)(b) that he needed to leave, § 87(2)(b) told the officer that he was on the phone with IAB. The phone call was disconnected when § 87(2)(b) stated that an officer was grabbing him and one officer can be heard telling him to stop and to control himself.

The radio transmission recording related to this incident is consistent with the above SPRINTs (encl. E4).

Arrest Disposition

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- As of May 9, 2011, § 87(2)(b) has not filed a Notice of Claim with the City of New York with regard to this incident (encl. H5).

Civilian Criminal History

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is § 87(2)(b) first CCRB complaint (encl. A3).

Subject Officers CCRB History

- PO Eduard Nogol has been a member of the service for eight years and there are no substantiated CCRB allegations against him (encl. A1).
- Sgt. David Miller has been a member of the service for sixteen years and there are no substantiated CCRB allegations against him (encl. A2).

Conclusion

Identification of Subject Officers

§ 87(2)(b) alleged that a white and Hispanic male officer punched him in his left forehead temple when his chest and the right side of his face were placed against a wall. PO Nogol stated that while trying to put § 87(2)(b) left arm behind his back, he did put one of his hands on the left side of § 87(2)(b) face to prevent him from biting or spitting at the officer. As PO Nogol stated that he was the only officer standing on § 87(2)(b) left and § 87(2)(b) stated that the officer who punched him was standing on his left, and PO Nogol admitted that he placed his hand on § 87(2)(b) face for a minute, Allegation A has been pleaded against PO Nogol.

§ 87(2)(b) alleged that after he was handcuffed and placed facedown on the ground, he was kicked six to seven times in the stomach and chest by an officer who arrived last and who sounded like a supervisor. Although § 87(2)(b) stated that she saw three officers, who were among the earliest officers to respond, kick § 87(2)(b) three to four times in the abdomen before he was handcuffed, § 87(2)(b) alleged that he was kicked after he was handcuffed.

Sgt. Miller confirmed that he and PO Birzin were the last officers to arrive and that § 87(2)(b) was lying on his belly, handcuffed, when they arrived. Sgt. Miller also confirmed that he had a brief verbal exchange with § 87(2)(b). Therefore, Allegation B has been pleaded against Sgt. David Miller of the 62nd Precinct.

Investigative Findings and Recommendations

Allegation A – Force: PO Eduard Nogol used physical force against § 87(2)(b)

§ 87(2)(b) alleged that while he was placed against a wall, PO Nogol punched him in his left side forehead temple. PO Nogol stated that while trying to put § 87(2)(b) left arm behind his back, he did put his hand on § 87(2)(b) face for a minute to prevent him from biting and spitting at the officer, but he did not punch § 87(2)(b) in the face. PO Sherlock, PO Matviiv, PO Wygand, and Sgt. Miller stated that they did not see any officers punch § 87(2)(b) in the face. § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation A** be **Unsubstantiated**.

Allegation B – Force: Sgt. David Miller used physical force against § 87(2)(b)

§ 87(2)(b) alleged that after he was handcuffed and placed facedown on the ground, Sgt. Miller kicked him six to seven times in the chest and stomach. § 87(2)(b) stated that § 87(2)(b) was kicked in the abdomen area three to four times by three officers before he was handcuffed. However, § 87(2)(b) never allege that he was kicked by any officers before he was handcuffed.

§ 87(2)(g)

Sgt. Miller stated that he did have a brief verbal exchange with § 87(2)(b) but he was standing ten feet away, and he did not have any physical contacts with him. PO Sherlock, PO Matviiv, PO Nogol, and PO Wygand stated that they did not see any officers kick § 87(2)(b) in the chest and stomach. § 87(2)(g) it is recommended that **Allegation B** be **Unsubstantiated**.

Team: 1

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date